



CHAPTER iii.

An Act to confirm a Provisional Order of the Minister of Health relating to the county borough of Doncaster.

[10th December 1945.]

WHEREAS under the provisions of the Public Health 38 & 39 Act 1875 the Minister of Health has made a Pro- Vict. c. 55. visional Order which needs confirmation by Parliament :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Order of the Minister of Health which is set out in the schedule to this Act is hereby confirmed and shall have full validity and force. Order in schedule confirmed.

2. This Act shall be deemed to have been passed before the coming into operation of the Water Act 1945. Saving for Water Act 1945.

8 & 9 Geo. 6.
c. 42.

3. This Act may be cited as the Ministry of Health Provisional Order Confirmation (Doncaster) Act 1945. Short title.

SCHEDULE.

COUNTY BOROUGH OF DONCASTER.

Provisional Order amending certain local Acts and provisional orders.

WHEREAS the mayor aldermen and burgesses of the county borough of Doncaster acting by the Council (in this Order called "the Corporation") carry on a water undertaking and supply water within certain limits in pursuance of the local Acts and provisional orders hereinafter mentioned;

And whereas the Corporation have applied to the Minister of Health (in this order called "the Minister") for the issue of a provisional order to amend the said local Acts and provisional orders in the manner following:

Now therefore the Minister in pursuance of the powers given to him by sections 297 and 303 of the Public Health Act 1875 and of all other powers enabling him in that behalf hereby orders as follows:—

Short title and commencement. 1. This order may be cited as the Doncaster Order 1945 and shall come into operation on the date of the Act of Parliament confirming it.

**Interpre-
tation.**

36 & 37 Vict.
c. cxxix.

43 & 44 Vict.
c. xxix.

4 Edw. 7.
c. ciii.

5 & 6 Geo. 5.
c. xv.

12 & 13 Geo. 5.
c. lxxii.

21 & 22 Geo. 5.
c. lvii.

42 & 43 Vict.
c. lxxviii.

46 & 47 Vict.
c. cxxxvi.

11 & 12 Geo. 5.
c. lxx.

2. In this order unless the context otherwise requires:—

"the local Acts" means the Doncaster Corporation Waterworks Act 1873 the Doncaster Waterworks Act 1880 the Doncaster Corporation Act 1904 the Doncaster Corporation Act 1915 the Doncaster Corporation Act 1922 the Doncaster Corporation Act 1931 the Doncaster Order 1879 which was confirmed by the Local Government Board's Provisional Orders Confirmation (Aysgarth Union etc.) Act 1879 the Doncaster Order 1883 which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 5) Act 1883 and the Doncaster Order 1921 which was confirmed by the Ministry of Health Provisional Orders Confirmation (No. 7) Act 1921;

"the borough" means the county borough of Doncaster;

"the water undertaking" means the water undertaking of the Corporation as from time to time authorised;

"the water limits" means the limits within which the Corporation are from time to time authorised to supply water.

Provisional Order Confirmation (Doncaster) Act, 1945.

3. The following Acts and parts of Acts (so far as the same are *Incorporation* applicable for the purposes and are not inconsistent with the provisions of Acts. of this order) are hereby incorporated with this order (namely) :—

- (1) The Lands Clauses Acts (except the provisions thereof with respect to the purchase and taking of lands otherwise than by agreement and except sections 127 to 131 inclusive of the Lands Clauses Consolidation Act 1845) ; 8 & 9 Vict.
c. 18.
- (2) The Waterworks Clauses Act 1847 except— 10 & 11 Vict.
c. 17.
 - (a) the words “ with the consent in writing of the owner or reputed owner of any such house or of the agent of such owner ” in section 44 ;
 - (b) sections 75 to 82 with respect to the amount of profit to be received by the undertakers when the waterworks are carried on for their benefit and section 83 relating to accounts ;
- (3) The Waterworks Clauses Act 1863. 26 & 27 Vict.
c. 93.

4. The Corporation in addition to any other lands acquired or held by them may by agreement purchase take on lease acquire and hold for the purposes of the water undertaking any lands not exceeding (except with the consent of the Minister) ten acres in extent or any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) over or in respect of lands which the Corporation deem necessary for those purposes : *Power to purchase additional lands by agreement*

Provided that the Corporation shall not create or permit the creation or continuance of any nuisance on any such lands nor without the approval of the Minister erect any buildings thereon except offices and dwellings for persons in their employment and such buildings and works as may be incident to or connected with the water undertaking but the restrictions of this section shall not apply in respect of lands leased or sold by the Corporation.

5.—(1) Subject to the provisions of this order the Corporation may *Power to* as soon as they shall have acquired the necessary lands make and *construct* maintain and from time to time alter renew and reconstruct the works *works.* hereinafter described (namely) :—

In the West Riding of Yorkshire—

Work No. 1 A borehole or boreholes and pumping station (to be called the “ Rossington Bridge Pumping Station ”) to be situate in the parish of Cantley in the rural district of Doncaster in the enclosure numbered in that parish 230 on the 1/2500 Ordnance Map (Yorkshire West Riding Sheet CCLXXXV. 11 Edition of 1930) ;

Work No. 2 A service reservoir and water tower (to be known as “ the Butterbusk Works ”) to be situate in the parish of Conisbrough Parks in the rural district of Doncaster in the enclosure numbered in that parish 410 on the 1/2500 Ordnance Map (Yorkshire West Riding Sheet CCLXXXIV. 11 Edition of 1930) ;

Work No. 3 A water tower to be situate in the borough in the enclosure numbered in the parish of Cantley in the rural district of Doncaster 362A on the 1/2500 Ordnance Map (Yorkshire West Riding Sheet CCLXXXV. 7 Edition of 1930):

In the County of Nottingham—

Work No. 4 A borehole or boreholes and pumping station (to be called the "Finningley Pumping Station") to be situate in the parish of Finningley in the rural district of East Retford in the enclosure numbered in that parish 174 on the 1/2500 Ordnance Map (Nottingham Sheets 1 14 and 15 Edition of 1921).

(2) The Corporation may upon lands acquired by them for the purposes of or in connection with the water undertaking under the provisions of this order make and maintain and from time to time alter renew and reconstruct all such works and conveniences as they may consider necessary or convenient in connection with or subsidiary to the works authorised by this order or for obtaining access to inspecting maintaining repairing cleansing managing working or using the same or any of them:

Provided that nothing in this subsection shall exonerate the Corporation from any action indictment or other proceeding for nuisance in the event of any nuisance being caused or permitted by them.

For protection
of Postmaster-
General.

41 & 42 Vict.
c. 76.

Works to
form part
of water
undertaking.

Power to
take waters.

Partial
repeal of
section 6 of
Order of 1921.

Power to
borrow.

6. Any electrical works and apparatus constructed under the provisions of this order shall be so constructed maintained and used as to prevent interference with any telegraphic line (as defined by the Telegraph Act 1878) belonging to or used by the Postmaster-General or with telegraphic communication by means of any such line.

7. The works authorised by this order shall for all purposes be deemed part of the water undertaking and subject to any necessary modifications the provisions of the local Acts shall so far as the same are applicable and subject to the provisions of this order extend and apply to such works.

8. Subject to the provisions of this order the Corporation may collect impound take use divert and appropriate for the purposes of the water undertaking all such springs and waters as will or may be intercepted by the works authorised by this order.

9. So much of section 6 (Restrictions on pumping) of the Doncaster Order 1921 as restricts the quantity of water to be extracted from Work No. 6 authorised by the said Order is hereby repealed.

10. The Corporation shall have power from time to time to borrow such sums as may be necessary for the purposes of this order:

Provided that so long as the making of an issue of capital in the United Kingdom without the consent of the Treasury is prohibited by regulations made under the Emergency Powers (Defence) Acts 1939 to 1945 it shall not be lawful for the Corporation to exercise the powers of borrowing conferred by this section without such consent.

Provisional Order Confirmation (Doncaster) Act, 1945.

II.—(1) For the purpose of the supply of water by the Corporation Application under the local Acts and this order the Corporation shall have the of section 119 powers of a local authority under section 119 of the Public Health of Public Health Act 1936 in respect of the carrying of water mains within or without 1936. their district and in exercising the powers of that section any area 26 Geo. 5 & within the water limits shall be deemed to be included in their 1 Edw. 8. c. 49. district :

Provided that in the exercise of the said powers the Corporation shall be subject to the provisions of sections 278 331 333 and 334 of the said Act.

(2) Section 4 of the Doncaster Order 1921 is hereby repealed.

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